

**SUPREME COURT OF PAKISTAN**  
(Appellate Jurisdiction)

**Present**

Justice Muhammad Ali Mazhar  
Justice Aqeel Ahmed Abbasi  
Justice Muhammad Shafi Siddiqui

**CPLA. Nos. 914-K to 919-K of 2023**

Appeal against the Judgment dated 22.05. 2023  
passed by the Sindh Service Tribunal, Karachi in  
Appeals No. to 32 to 37/2022

|                    |                    |
|--------------------|--------------------|
| Faheemuddin Memon  | (In CP.914-K/2023) |
| Sajjad Ahmed Abro  | (In CP.915-K/2023) |
| Abdul Sattar       | (In CP.916-K/2023) |
| Manzoor Ali Siyal  | (In CP.917-K/2023) |
| Manshad Ali        | (In CP.918-K/2023) |
| Ali Muhammad Babar | (In CP.919-K/2023) |
|                    | ...Petitioner(s)   |

**Versus**

|                                                       |                  |
|-------------------------------------------------------|------------------|
| Province of Sindh through Chief<br>Secretary & others | ...Respondent(s) |
|-------------------------------------------------------|------------------|

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| For the Petitioner (s)<br>(In CP.914-K & 917-<br>K/23) | Mr. M. M. Aqil Awan, Senior ASC<br>A/w Mr. Danish Advocate and<br>petitioners in person |
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| (In CPs.915-K,916-K,<br>918-K & 919-K/23 | Malik Naeem Iqbal, Sr. ASC<br>a/w petitioners of CPs.916-K &<br>918-K/2023 in person |
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| For private respondents: | Mr. Abdul Salam Memon, ASC<br>and Respondent No.78 in person<br>(In CP.No.914-K/2023)<br>Mr. Ghulam Shabbir Baloch, AOR<br>(for Respondent No.99 in CPLA.No.914-K to 919-<br>K/2023) |
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| For the<br>Respondent/Province of<br>Sindh: (In all petitions) | Mr. Sibtain Mahmud, Addl. A.G.<br>A/w Mr. Suresh Kumar, Addl.A.G<br>and Ghazanfar Ali Abbasi, Dy.<br>Secretary BOR. |
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| Date of Hearing | 25.03.2026 |
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**Judgment**

**Muhammad Ali Mazhar, J:** These Civil Petitions for leave  
to appeal are directed against the consolidated judgment

dated 22.05.2023 passed by the Sindh Service Tribunal, Karachi **(Tribunal)** in Service Appeals No. 32 to 37/2022.

2. According to the foundational framework of the case, the controversy in fact gave birth to a dispute regarding the assignment of the seniority of Mukhtiarkars BS-16 which according to the petitioners are categorized in three groups i.e. (i) First Category is of Mukhtiarkars (petitioner and their colleagues) who were promoted on regular basis on 03.01.2011 and were posted against the same post on acting charge basis before regular promotion; (ii) Second Category relates to the Mukhtiarkars (respondent No. 3 to 24 and 117 to 130) for whom no seat/post was allegedly reserved in their quota at the time of deferment and they were subsequently promoted on regular basis on 30.04.2012 as well as 2013 but were allowed seniority with retrospective effect from 03.01.2011 and (iii) Third Category is of the directly recruited Mukhtiarkars (respondent No. 25 to 116) who were appointed on regular basis through Sindh Public Service Commission **(SPSC)** on 31.10.2011. The direct recruits challenged the seniority list dated 25.03.2015 before the learned Tribunal on the ground that retrospective assignment of seniority to the deferred Mukhtiarkars with effect from 03.01.2011 is unlawful for the reason that at the time of their deferment, no vacancy was reserved for them and they could only be promoted with effect from the date of occurring vacancy in their promotion quota. It was further alleged that the deferred Mukhtiarkars promoted with retrospective effect joined hands with some of the direct recruits who were shown senior to petitioners in the impugned seniority list of Mukhtiarkars in collusion with official respondents.

3. Mr. M. Aqil Awan Sr. ASC for the petitioners in C.P.L.A No. 914-K and 917-K of 2023, argued that 37 Mukhtiarkars were cleared for promotion and notified on 03.01.2011;

thereafter on 31.10.2011, 95 Mukhtiarkars were recruited on regular basis through SPSC; the petitioners fall within the category of promotees; 54 deferred Mukhtiarkars were promoted subsequently in the year 2012, 2013 and 2014; the final seniority list of Mukhtiarkars was issued on 25.03.2015; according to the seniority list, the deferred Mukhtiarkars were allowed seniority with retrospective effect from the date of 03.01.2011 but the direct recruits appointed on 31.10.2011 were shown junior to the deferred promotees. It was further contended that the direct recruits had challenged the seniority list before the Tribunal on the notion that the deferred promotees could not be allowed retrospective seniority under Rule 13 (1) of Sindh Civil Servants (Probation, Confirmation & Seniority) Rules 1975, **(1975 Rules)** for the reason that at the time of deferment, no vacancy/post was reserved therefore, they could only be promoted against vacant post within the promotion quota determined by the rules. It was further contended that on the aforesaid plea, the Tribunal allowed the appeals of direct recruits vide judgment dated 29.04.2016 whereby the impugned seniority list dated 25.03.2015 was set aside; seniority lists issued in the years 2012, 2013 and 2014 were also set aside and Secretary Board of Revenue (BOR) and the Secretary Revenue Department, Government of Sindh, were directed to work out the number of vacancies available in the promotees' quota from the year 2008, the number of officers actually working against the post of Mukhtiarkars and consequent vacancies or number of officers in excess of the quota. He further argued that the promotees had challenged the aforesaid judgment in this Court and vide its judgment dated 19.01.2021, by the consent of the parties present before this Court, the matter was remanded to the administrative authority. Though the Departmental Authority for complying with the judgment of this Court prepared the final seniority list dated 08.06.2021, it failed to follow the operative part of the judgment of this Court

dated 19.01.2021. He further contended that the settled seniority of promotees was disturbed after several years which was protected with consent of all the concerned parties before this Court.

4. Malik Naeem Iqbal, learned counsel appearing for the petitioners in CPs.915-K, 916-K, 918-K & 919-K/23, argued that the challenge was made to the Tribunal against the Final Seniority List of Mukhtiarkars dated 08.06.2021 prepared in purported compliance of the judgment passed by this Court in Civil Appeals No. 489 to 491 of 2017. According to the Notification dated 01.06.1992, the posts of Mukhtiarkars were to be filled 50% by initial recruitment and 50% by promotion. Consequently, the administrative department convened a meeting of DPC on 27.11.2010. The minutes of DPC reflect that there were 222 sanctioned posts of Mukhtiarkars (BS-16), out of which, 111 posts had fallen under 50% quota of promotion and out of 111 posts, 74 posts were already filled up by the promoted Mukhtiarkars and only 37 vacant posts were available for considering the promotion amongst Assistant Mukhtiarkars on seniority-cum-fitness basis. The DPC considered 91 Assistant Mukhtiarkars in order of seniority against 37 vacant posts and recommended for promotion 37 Assistant Mukhtiarkars to the post of Mukhtiarkars (BS-16), deferring the remaining Assistant Mukhtiarkars for the reasons noted in the minutes. It was further contended that the respondent's No. 25 to 116 were directly appointed as Mukhtiarkars against 50% quota of initial recruitment on 31.10.2011. The deferred Mukhtiarkars who were actually promoted in the year 2012, 2013 and 2014 were wrongly assigned seniority with retrospective effect from 03.01.2011 i.e. the date when their juniors were promoted. The learned counsel further contended that the seniority list dated 08.06.2021 is not compliant with the directions contained in the order of this Court and it also violates Section 8 of

the Sindh Civil Servant Act, 1973 (**CSA 1973**) and Rule 9 read with Rule 10 of 1975 Rules.

5. Mr. Abdul Salam Memon, the learned counsel for the respondent No. 30, 31 33, 34,35,37, 38,39,40 42, 43,45,46, 47, 48, 51, 53, 54, 59 and 65 in C.P.L.A No. 914 K to 919-K of 2023, argued that the answering respondents came into service as Mukhtiarkars (BS-16) on 31.10.2011, through the examination conducted by SPSC, under fifty percent (50%) quota of direct recruitment in terms of Rules of 1992 on regular basis. He also reiterated the vacant situations reflected in the working paper and DPC minutes and contended that according to working paper of promotion quota, 74 Mukhtiarkars (BS-16) were already working and on remaining 37 seats, out of 111, promotions were considered and recommended and the notification was issued on 03.01.2011, consequently the quota under the category of promotions was exhausted by promoting 37 Assistant Mukhtiarkars as Mukhtiarkars in BS-16 in terms of the Rules and 54 Assistant Mukhtiarkars were deferred for various reasons and thereafter those deferred Assistant Mukhtiarkars were also promoted as Mukhtiarkars. He argued that pursuant to the Order dated 19.01.2021 passed by this Court, Provisional Seniority list was issued on 22.04.2021, wherein objections were invited within fifteen (15) days and in compliance with the same, answering respondents submitted elaborate objections explaining the entire facts coupled with Rules in respect of appointment of Direct Mukhtiarkars (BPS-16), and promoted Mukhtiarkars. After submission of the Objections and consideration of the same, Final Seniority List was issued on 08.06.2021 and after settling the seniority of directly recruited Mukhtiarkars and promoted Mukhtiarkars, the promoted Mukhtiarkars were pushed back in the final seniority list dated 08.06.2021 against directly recruited Mukhtiarkars. He further contended that the

impugned judgment of the Tribunal is based on correct exposition of law.

6. Mr. Ghulam Shabbir Baloch, AOR, on behalf of Respondent No.99 in C.P.L.A NO. 914-K to 919-K/2023 submitted his note in which he reiterated almost same factual position but in addition, it was stated that since the available vacancies as per answering respondent's batch were existing prior to the induction of direct Assistant Commissioner's batch of 2019 on 12.02.2019, therefore non-consideration of such batch for the purpose of seniority under the spirit and direction contained in the judgment of this Court was not complied with. However at the same time, this respondent requests us to dismiss the instant Civil Petitions and direct the Chief Secretary to assign the proper seniority along with batchmates from the date of occurrence of vacancy.

7. Mr. Sibtain Mahmud, learned Additional Advocate General Sindh argued for the official respondents that in compliance of the Judgment of this Court in C.A No.489 to 491 of 2017, dated 19.01.2021, the department conducted an arduous exercise for preparation of Final Seniority List strictly in accordance with the directions as well as in line with Rule 9, 11 and 13 of the 1975 Rules read with Section 8 of the CSA, 1973; proper opportunity of hearing was provided to the petitioners on the objections filed by them to the Provisional Seniority List and since the objections of the promotees were in contravention to the judgment of this Court dated 19.01.2021, so also contrary to the Recruitment Rules, therefore the objections were discarded. He further argued that only 37 positions were available for promotion, whereas 97 positions were available for direct recruitment hence promotion was not possible beyond the specified quota but recruitment could be made on regular terms in direct quota. He also averred that the

petitioners were promoted by deferring 54 officers and awarded inter-se seniority over them and the Direct Recruited Mukhtiarkars in unlawful manner vide Notification dated 25.03.2015, depriving others of their legal right, hence the seniority issue was revisited and correct seniority was assigned vide Notification dated 08.06.2021. It was further contended that 'Deferment' as compared to 'Supersession' is provided in Rule 13 (i) (iii) and (2) of 1975 Rules which entails when disciplinary proceedings are pending against civil servants but on his subsequent promotion, subject to any order made by the competent authority in this behalf, for the purpose of inter-se seniority in the higher post be deemed to have been promoted in the same batch as his juniors. It was further contended that the inter-se seniority of petitioners was rightly determined, hence the impugned judgment of the Tribunal does not require any interference.

8. Heard the arguments. Much reliance was placed by the parties vice versa on the judgment of this Court dated 19.01.2021, rendered in Civil Appeals No.489 to 491/2017 and connected Civil Petitions wherein it was held as under:-

1) The Impugned judgment of the learned Sindh Service Tribunal dated 29-04-02016 is set aside.

2) The seniority list of 2015 is set aside.

3) The matter is remanded to the department which shall proceed to prepare a fresh seniority list in the following manner:-

a) 50% quota of direct appointees and promotees respectively shall be strictly followed in letter and spirit;

b) Promotion shall be subject to availability of post in the relevant quota;

c) No cross quota promotion shall be made;

d) Those who have been promoted without the availability of posts in violation of the rules shall be treated as ad-hoc promotees and shall be entitled to promotion only from the date of their regular

appointments, subject to the availability of posts in the respective quotas, and;

e) Inter-se seniority shall be determined by the department from the date of regular appointment and on the basis of relevant rules.

4) The aforesaid exercise shall be completed by the department within a period of three months from the date of communication of this order. The Secretary Board of Revenue and the Secretary Revenue Department, Government of Sindh shall ensure timely implementation of this order in letter and spirit; and

5) Any party aggrieved by the new seniority list shall have the right to approach the competent forum and avail such remedies may be available under the law".

9. In order to address the bone of contention, it is also imperative to discuss and distinguish the niceties of the expression "supersession" and "deferment". More often than not, the civil servant laws and service structure, the aphorism "supersession" converse in the decision of the Central Selection Board (CSB), Provincial Selection Board (PSB), or Departmental Promotion Committee (DPC) which bypasses or sidesteps a senior civil servant for promotion and the promotion is accorded to a junior officer which may occur if such officer fails to meet the required threshold; failure to secure a score high enough on quantified performance criteria or unsatisfactory Performance Evaluation Reports (**PERs**) or lacking in the mandatory course or training or repeated failure in the mandatory training courses or having a record of major penalties. In fact it is construed as a formal declaration that the civil servant is presently not suitable for promotion and ought to review his excellence, performance and demeanour. When a civil servant is superseded and juniors/counterparts are promoted, the superseded officer loses his inter-se seniority. A superseded officer is generally not considered for the promotion all over again until he earns or secures better PERs after the decision of supersession and proving to be a deserving candidate for consideration yet again. If a civil

servant deems he was superseded in violation of objective merit rules, he may file a departmental appeal, followed by appeal before the relevant Service Tribunal to challenge the decision of his suppression.

10. Though the case at hand directly relates to the seniority issue of Mukhtiarkars (BPS-16) and for determination of seniority, wherein 1975 Rules are applicable but just to more aptly consider the true meaning of “suppression”, aid can be taken as reference from the definition of the expression “supersession” provided under Rule 2 of the Sindh Civil Servants Promotion (BPS-18 to BPS-21) Rules, 2022, wherein "supersession" means the decision of the appointing authority on the recommendations of the PSB-I, PSB-II or DPC, as the case may be, to supersede an officer for promotion to a higher basic pay scale or post on a particular occasion. Whereas in Rule 8, conditions for supersession are provided i.e. a civil servant shall be recommended for supersession if he/she does not meet the requisite threshold for promotion to a particular post or grade in any particular service or post; b) subject to the provisions of Rule 22 of these rules, he/she fails thrice for any reason to attend the mandatory training; or c) there is any other reason which shall be recorded in writing by the PSB-I, PSB-II or DPC as the case may be.

11. On the flip side, the expression “deferment” denotes an administrative delay rather than a judgment of unfitness or incompetency against the prospective candidate in the line of consideration before the competent authority or forum. This incidence crops up ordinarily when mandatory conditions are missing for the time being including missing trainings, incomplete PERs or pending disciplinary proceedings. This cannot be called suppression, but remaining pendent until then such deferred civil servant attends and vanquishes the shortcomings and improves his

performance for subsequent promotion cycles. The expression “supersession” cannot be confused with the terms “deferment”, as both have different weightage and credence. Deferment is temporary postponement but not a negative judgment on merit or fitness but is considered as an unbiased and impartial administrative break in proceedings that profusely maintains and upholds batch ranking, therefore, on promotion after the phase of deferment, the seniority remains protected with the original batchmates.

12. Yet again, reference can be made to the Sindh Civil Servants Promotion (BPS-18 to BPS-21) Rules, 2022, only for understanding wherein Rule (2) (f) defines the terms "deferment" which means deferment of a civil servant for promotion, approved by the appointing authority on recommendations of the PSB-I, PSB-II or DPC, as the case may be, for reasons to be recorded in writing. While under the same Rules, the various conditions for deferment are provided under Rule 7 *inter alia* a civil servant shall be recommended for deferment, if a) the officer does not meet the eligibility criteria as contained in Rule 6 of these rules; b) the officer has not submitted Part-I and Part-II of his/her form of the Performance Evaluation Report(PER) to his/her reporting officer; c) the PSB-I, PSB-II or DPC considers that the service record of the officer is incomplete in any aspect; d) the PSB-I,PSB-II or DPC wants to further watch performance of the officer for any reason to be recorded in writing; e) Provided that period of performance to be watched under this clause shall not exceed twelve months; disciplinary or departmental proceedings are pending against the civil servant etc.

13. In the present controversy raised, the determination of seniority is predominantly based on the premise that there were three categories of contestants i.e. Direct Recruit Mukhtiarkars, Promotees Mukhtiarkars and Deferred

Mukhtiarkars. According to the minutiae, 54 Deferred Mukhtiarkars were promoted subsequently in the year 2012, 2013 and 2014 but they were allowed seniority with retrospective effect from 03.01.2011 and the Direct Recruits appointed on 31.10.2011 were shown junior to the Deferred Promotees. The major stance of the learned counsel for the petitioners is based on logic that the deferred promotees could not be allowed retrospective seniority under Rule 13 (1) of 1975 Rules for the first and foremost reason that at the time of their deferment, no vacancy/post was reserved for such deferred promotees, therefore, they could only be promoted against vacant post which as and when fall within the promotion quota as may be determined by the rules. It was further articulated that the Departmental Authority in compliance of judgment of this Court dated 19.01.2021, prepared the final seniority list dated 08.06.2021 and Promotees were made juniors to the Direct Recruits so also the Deferred Promotees.

14. According to the working paper compiled by the Revenue Department for the promotion of 37 Assistant Mukhtiarkars, the DPC was convened on 27.11.2010. As a result thereof, 37 Assistant Mukhtiarkars, were promoted as Mukhtiarkars against the available vacant posts vide notification dated 03.01.2011. At one fell swoop, 54 Assistant Mukhtiarkars were deferred due to pending departmental, criminal and anti-corruption proceedings. Furthermore, 95 vacant posts of Mukhtiarkars were filled by means of fresh appointments on the recommendations of SPSC vide notification dated 31.10.2011 against the quota of direct recruits. Afterward, the deferred Assistant Mukhtiarkars were promoted in the year 2012, thereafter, they submitted representations and claimed inter-se seniority with their batchmates. The argument that 54 deferred Assistant Mukhtiarkars were superseded by 37 promoted Assistant Mukhtiarkars does not seem to be logical as no specific order for their supersession was

passed. On the contrary, their credentials or antecedents mentioned in the dossier were not considered just because of pending disciplinary actions and pending disciplinary proceedings including anti-corruption cases. Had they been considered by DPC for promotion meaningfully and not accorded the promotion, then there might be a case of supersession made out. Even this argument that no post was reserved also seems to be feeble for the reason that when deferred candidates were out of race from inception then obviously, the promotion was to be considered between the available contenders minus the deferred candidates. Merely non-availability of promotion quota does not debar the deferred candidates from claiming inter se seniority with their batchmates after attaining promotion though subsequently but after washing away or mopping the stigma if any against the right of promotion. So far as the seniority of directly recruited Mukhtiarkars is concerned, the Tribunal itself held that their seniority shall be reckoned from the date of regular appointment in terms of Rule 10 of 1975 Rules.

15. In the Sindh Civil Servants Act, 1973, Section 8 relates to the seniority, whereby for proper administration of a service, cadre or post the appointing authority is obligated to cause a seniority list of the members for the time being of such service, cadre or post to be prepared, but it does not confer any vested right to a particular seniority in such service, cadre or post as the case may be and seniority is reckoned in relation to other civil servants belonging to the same service or cadre whether serving in the same department or office or not, as may be prescribed. While the seniority on initial appointment to a service, cadre or post is determined as may be prescribed and seniority in a post, service or cadre to which a civil servant is promoted is given effect from the date of regular appointment of such civil servant to that post, service or cadre, provided that civil servants who are selected for promotion to a higher post in

one batch shall, on their promotion to the higher post, retain their inter-se seniority as in the lower post. While Section 9 deals with the promotion which *inter alia* provides that a civil servant possessing such minimum qualification as may be prescribed is considered eligible for promotion to a higher post for the time being is reserved under the rules for departmental promotion in the service or cadre to which he belongs.

16. In tandem, if we look into the nitty-gritties of Rule 9 of the 1975 Rules, it *inter alia* mandates that in each cadre in a department there shall be a separate seniority list of a group of civil servants doing similar duties and performing similar functions and for whose appointment same qualifications and experience have been laid down and the appointing authority shall, in the month of January every year, cause to be prepared, or, as the case may be, revised, the seniority list under sub-rule (1). Whereas Rule 10 provides that subject to the provision of Rule 11, the seniority of a civil servant shall be reckoned from the date of his regular appointment and no appointment made on ad-hoc basis shall be regularized retrospectively. Likewise, Rule 11 is germane to determination of inter-se-seniority of civil servants which provides the criteria (a) in the case of persons appointed by initial recruitment, in the order of merit assigned by the selection authority, and if such authority is either not competent to assign such order of merit or has omitted to do so and is unable to overcome the omission for reasons beyond its control, the seniority shall be determined by the appointing authority. Provided further that a person selected in earlier selection shall rank senior to a person selected in a later selection; (b) In the case of persons appointed by promotion on the basis of their inter-se seniority in the lower post; (c) In the case of persons appointed by initial recruitment vis-à-vis persons appointed by promotion on the basis that the persons appointed by promotion shall rank senior to the persons appointed by

initial recruitment; (d) In the case of persons not covered by clauses (a) to (c), on the basis that persons older in age shall rank senior to persons younger in age.

17. Nonetheless, Rule 13-A of 1975 Rules has the direct nexus to the case at hand wherein it is clearly provided without any shadow of doubt that a civil servant, who is not promoted on his turn on the ground that (i) his seniority is under dispute or is not determined; or (ii) he is on deputation, training or leave; or (iii) disciplinary proceedings are pending against him; or (iv) he is not considered for promotion for any reason other than his unfitness for promotions; shall on subsequent promotion, subject to any order made by the competent authority in this behalf for the purpose of inter-se seniority in the higher post be deemed to have been promoted in the same batch as his juniors. It is further provided in sub-rule (2) that a Civil Servant declining to avail the benefit of order of his promotion shall, on his subsequent promotion, rank junior, in the higher post to those who may have been promoted earlier as a result of his having declined to avail the benefit of such promotion.

18. According to an undisputed piece of data, the case in essence is spread over three categories of civil servants who are in wrangle i.e. the Mukhtiarkars, promoted on regular basis on 03.01.2011 and posted on acting charge basis before regular promotion; the deferred Assistant Mukhtiarkars who were subsequently promoted as Mukhtiarkars on regular basis on 30.04.2012 as well as 2013 but they were allowed seniority with retrospective effect and the Mukhtiarkars directly recruited /appointed on regular basis through SPSC on 31.10.2011. The learned counsel appearing for the petitioners pleaded violation of the judgment of this Court rendered in the earlier litigation whereby the matter was remanded to the department to prepare a fresh seniority list in line with the directions

contained in the judgment dated 19.01.2021, wherein the most important fragments of the judgment which required consideration were that while preparing the seniority list afresh, 50% quota of direct appointees and promotes respectively shall be strictly followed in letter and spirit; promotion shall be subject to availability of post in the relevant quota; no cross quota promotion shall be made; those who have been promoted without the availability of posts in violation of the rules shall be treated as ad-hoc promotees and shall be entitled to promotion only from the date of their regular appointments, subject to the availability of posts in the respective quotas, and inter-se seniority shall be determined by the department from the date of regular appointment and on the basis of relevant rules. At first sight, there seems to be no violation of the aforesaid Order if the deferred candidates were granted inter-se seniority with their batchmates as per Rules. Obviously due to their deferment, other candidates in que were rightly considered rather than shelving the entire promotion process by DPC. If the argument is accepted that some seats/posts should have reserved for deferred candidates in the same quota, it means that all 37 seats/posts of Assistant Mukhtiarkars should have been reserved and withheld for 54 deferred candidates which could have discontinued the entire DPC proceedings and resulted in stalemate.

19. In order to determine the inter-se seniority of deferred Assistant Mukhtiarkars, Rule 13-A of 1975 was rightly applied by the Departmental Authority and in this regard, the impugned judgment of the Tribunal does not require any interference which is maintained to this extent accordingly. This also reminds us of a celebrated proverb that "Birds of a feather flock together", ("Byrdes of on kynde and color flock and flye allwayes together"), or Birds of one kind and colour flock and fly always together, which accentuates that people who are similar in interests, background, or character tend

to associate and spend time with one another. The seniority in the employment career refers to a lifelong journey of an individual's professional life and increasing experiences earned over a passage of time with endurance, and consistency. According to the lucid exposition of the aforesaid phrase, "feathers" represent an employee's career stage and identity in a workplace, while "flocking" refers to the social and professional alliances/groups that form within those tiers.

20. Insofar as the assertion of the petitioners that the date of their promotion was 03.01.2011, (which now include the deferred promotes accorded inter se seniority with their batchmates with effect from 03.01.2011), whereas date of appointment of directly recruited Mukhtiarkars was 31.10.2011, despite that the petitioners have been placed in the impugned seniority list below the said persons, therefore, they claim seniority from the date of their regular promotion i.e. 03.01.2011 in terms of 1975 Rules. In our view, this particular aspect needs further consideration and reconciliation exercise by the Department/Concerned Authority as to whether there was any such error or mishap in the determination and question of inter-se seniority in the midst of promoted and directly recruited Mukhtiarkars. Nevertheless, the learned Tribunal in paragraph 20 of the impugned judgment observed that so far as the seniority of directly recruited Mukhtiarkars is concerned, their seniority shall be reckoned from the date of regular appointment vide notification dated 31.10.2011 as contained in Rule 10 of 1975 Rules and found no ambiguity regarding the seniority position of directly recruited Mukhtiarkars but it was not adverted to with clarity whether inter-se seniority of promoted Mukhtiarkars vis-à-vis directly recruited Mukhtiarkars on 31.10.2011 was rightly fixed or not but simply dismissed the service appeals.

21. In the wake of the above discussion, the Civil Petitions are converted into appeals and partly allowed. As a consequence thereof, the matter is remanded to the Secretary Revenue Department, Government of Sindh, only for limited re-examination and re-visitation of seniority ranking of promoted Mukhtiarkars from the date of promotion and directly recruited Mukhtiarkars from the date of appointment and if any lapse or apparent error or violation of 1975 Rules is found, pass an appropriate order within two months for correction if any required in the Final Seniority List of Mukhtiarkars (BPS-16) dated 08.06.2021 after hearing the stakeholders.

Judge

Judge

Judge

Announced in open court

On \_\_\_\_\_ at Islamabad

Khalid

Approved for reporting